THE ORISSA WEIGHTS AND MEASURES (DELHI REPEAL) ACT, 1958

ARRANGEMENT OF SECTIONS

SECTIONS

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IndiaCode

THE ORISSA WEIGHTS AND MEASURES (DELHI REPEAL) ACT, 1958

ACT NO. 57 OF 1958

[30*th December*, 1958.]

An Act to provide for the repeal of the Orissa Weights and Measures Act, 1943, in its application to the Union territory of Delhi.

BE it enacted by Parliament in the Ninth Year of the Republic of India as follows:—

1. Short title.—This Act may be called the Orissa Weights and Measures (Delhi Repeal) Act, 1958.

2. Definition.—In this Act,—

(*a*) "Orissa Act" means the Orissa Weights and Measures Act, 1943 (Orissa Act 7 of 1943), as extended to Delhi by notification under section 7 of the Delhi Laws Act, 1912 (13 of 1912);

(*b*) "Rajasthan Act" means the Rajasthan Weights and Measures (Enforcement) Act, 1958 (Rajasthan Act 32 of 1958), as extended to the Union territory of Delhi by notification under section 2 of the Union Territories (Laws) Act, 1950 (30 of 1950).

3. Repeal of Orissa Act.—On the date on which the Rajasthan Act or any provision contained therein comes into force by virtue of a notification issued under sub-section (*3*) of section 1 of that Act in the Union territory of Delhi or any part thereof in respect of any class of undertakings or any class of goods, the Orissa Act or any provision contained therein, which is applicable to those undertakings or goods in the said territory or part thereof, as the case may be, shall stand repealed:

Provided that the repeal shall not affect—

(*a*) the previous operation of the Act so repealed or anything duly done or suffered thereunder; or

(*b*) any right, privilege, obligation or liability acquired, accrued or incurred under the Act so repealed; or

(*c*) any penalty, forfeiture or punishment incurred in respect of any offence committed against the Act so repealed; or

(*d*) any investigation, legal proceeding or remedy in respect of any such right, privilege, obligation, liability, penalty, forfeiture or punishment as aforesaid;

and any such investigation, legal proceeding or remedy may be instituted, continued or enforced and any such penalty, forfeiture or punishment may be imposed, as if that Act had not been repealed.

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